

1.

| CASE #      | CASE NAME          | HEARING NAME                                                            |
|-------------|--------------------|-------------------------------------------------------------------------|
| CVRI2205203 | BUTLER VS WINCHELL | MOTION TO VACATE DEFAULT JUDGMENT AND TO RESTORE CASE TO TRIAL CALENDAR |

**Tentative Ruling:**  
GRANT

The Judgment After Trial by Court entered on February 20, 2026, is hereby set aside. Matter is set for a Trial Setting Conference on August 20, 2026, at 8:30am, D-4.

2.

| CASE #      | CASE NAME                           | HEARING NAME                                                                                                    |
|-------------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------|
| CVRI2304403 | KANDILIAN VS BMW NORTH AMERICA, LLC | MOTION TO EXCLUDE PLAINTIFF'S EXPERT GABE PAREDES AND DISQUALIFY PLAINTIFF'S LAW FIRM BY BMW NORTH AMERICA, LLC |

**Tentative Ruling:**  
DENY the Motion to Exclude Gabe Paredes and Disqualify Plaintiff's Firm

Plaintiff's objection No.1 to the declaration of Travis Brown is SUSTAINED on the grounds of speculation, lack of foundation and hearsay.

Plaintiffs' objections Nos. 1-8 to the Declaration of Luis Holguin are SUSATINED on the grounds of speculation, lack of foundation and hearsay.

Defendant does not meet its initial burden to show that Plaintiff's expert witness, Gabe Paredes, possesses confidential information protected by the attorney-client privilege or the attorney work product rule, that is materially related to this action. Defendant has not established that Paredes possesses any confidential information and/or privileged information in this case that would implicate the rebuttable presumption that such information was disclosed to Plaintiff's counsel. The motion to disqualify Plaintiff's counsel is also denied.

The three supplemental declarations filed by Defendant after the court issued its Order to set aside the ruling of June 3, 2026, and set the matter for further hearing today, do not provide any new or additional information that would change the court's ruling to deny the motion.

The Declaration of Gayatri Raghunandan provides no new information that addresses the dispositive test for disqualification set forth in *Shadow Traffic Network v. Superior Court* (1994) 24 Cal.App.4<sup>th</sup> 1067---whether Paredes possessed confidential attorney-client information materially related to this proceeding. The fact that Plaintiff's attorney represented Paredes does not suggest any conflict that is material to the instant action.